



MEMORANDUM FOR RECORD

SUBJECT: Use of a Single Source below the Simplified Acquisition Threshold (SAT)

I. BACKGROUND

A. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

B. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF THE SUPPLIES/SERVICES REQUIRED

Emergency flood cleaning services for building 737.

III. RATIONALE FOR SOLICITING FROM A SINGLE SOURCE OR BRAND NAME (select all that apply):

☒ A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

☐ 1. RESTRICTIVE RIGHTS

The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

☐ 2. EXCLUSIVE LICENSING AGREEMENTS

The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

☐ 3. BRAND NAME

Item required must be a brand name product, or feature of a product, particular to one manufacturer.

☒ 4. OTHER REASONS

Due to the urgent nature of this requirement, Always Clean Carpet and Restoration llc is the only responsible vendor able to respond in a timely manner that will mitigate water damage to MAFB's real property.

☐ B. UNUSUAL AND COMPELLING URGENCY.

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified.
2. Required delivery date/period of performance.
3. Explanation of why delivery/commencement of services by the date mentioned above is required:



Note: This MFR is only applicable to acquisitions under the Simplified Acquisition Threshold. Acquisitions using FAR Subpart 13.5 shall follow the special documentation requirements at FAR 13.501.



4. If appropriate, include any additional pertinent information.

IV. CONTRACTING OFFICER'S DETERMINATION

I have determined, in accordance with FAR 13.106-1(b)(1), that the circumstances of this contract action deem only a single source is reasonably available.

Refer to [FAR 5.102\(a\)\(6\)](#) for the requirement to post the brand-name justification or documentation.

Typed Name and Rank/Grade of Contracting Officer TSgt Ricardo Dominguez	Signature of Contracting Officer
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